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BETWEEN TYRANNY AND ANARCHY

A History of Democracy in Latin America, 1800–2006

PAUL W. DRAKE

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To Josh, Liz, and Katie Drake

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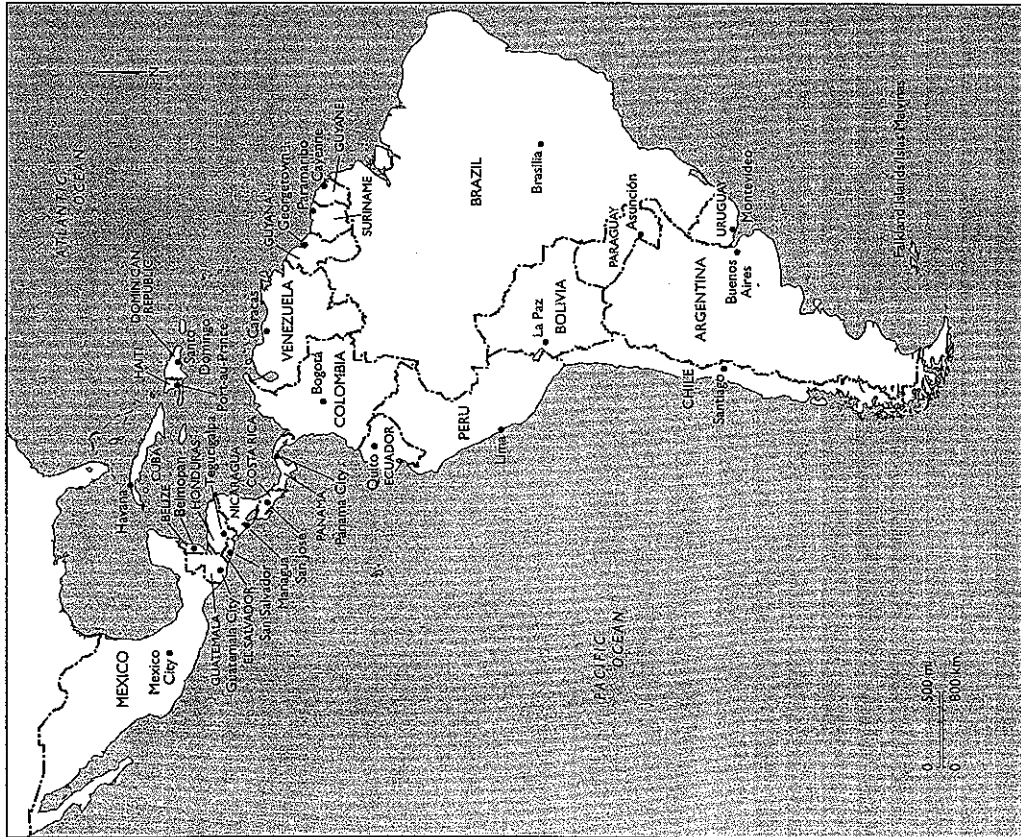
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Chapter 1

The Theory and History of Latin American Democracy, 1800–2006



Map of Latin America

The title of this book comes, appropriately, from Simon Bolívar. In the opening decades of the nineteenth century, the Liberator expressed his exasperation at forging a democratic republic that could withstand the opposing dangers of “tyranny and anarchy.” Ever since then, his descendants have grappled with the classic dilemma of crafting a democracy that provides order without dictatorship, and liberty without disintegration.¹

Juxtaposed to its venerable fame as a home for despotism, Latin America also boasts one of the planet’s longest, deepest, and richest histories of experiments with democracy. Along with the United States, the region hosts “the oldest continuous republics of the contemporary world.”² Occupying a unique niche between the West and the developing world, Latin America offers an extraordinary laboratory for examining democratic movements, ideas, and institutions. “In no other part of the world have more persistent efforts been made to preserve freedom under such unfavorable circumstances.”³

Amidst a history dominated by dictators, Latin America’s struggle for democracy—like its battles for economic development, social justice, and human rights—was a protracted, erratic, and painful process. From the beginning in the nineteenth century, they sowed seeds that took a long time to sprout, let alone flourish. In the long view, these flawed (and often futile) attempts to instill democratic values and rules bore fruit. Their early themes,

concepts, practices, and institutions continue to shape the successes and failures of democracy in the region even into the present day.

In spite of all their shortcomings, the attempts at democracy that had their start in the nineteenth century should not be underestimated. Explicitly or implicitly, observers inside and outside the region have too often denigrated these episodes because of the plethora of authoritarian regimes. This study unearths a more positive picture without slighting the severe deficiencies. Contrary to conventional wisdom, the countries leading the region in making democratic advances did not lag very far behind the United States and Western Europe. Latin America's continuing battles to establish and improve democracy have resembled similar problems confronted in both richer and poorer nations alike.

In comparison with the United States and Western Europe, Latin America's democratic history has been distinctive because of its fundamental dilemma: how to reconcile political systems that are theoretically committed to legal equality with societies that are divided by extreme socioeconomic inequalities. Too often, the polarized distribution of social power undermined the efficacy of democratic institutions. For two centuries, the Latin American upper classes repeatedly resorted to tyranny out of dread that the lower classes would unleash anarchy—or worse, revolution. Between the alternatives of dictatorship or disorder, Latin Americans developed two special variants of democracy to cope with their exceptionally unequal societies—one through exclusion and the other through inclusion.

These competing models of *protected* versus *popular* democracy stressed the content and outcome of democracy more than the intrinsic value of the institutional procedures revered in Western Europe and the United States. In Latin America, many elites preferred protected democracies, with strict formal and informal limits on participation and programs for the unprivileged majority. By contrast, many reformers advocated popular democracies, with an emphasis on a massive role for the working classes in selecting governments and deriving benefits from them. This book traces the trajectory of these contested visions of democracy from the 1800s to the 2000s.

To assess that evolution, this book asks when, where, and why has democracy existed and lasted in Latin America? What have been the concepts, types, rules, regulations, institutions, and limits of those systems? And what have been their triumphs and tragedies?

Without a thorough examination of the historical causes, most existing general theories of democracy can not adequately explain its failures, successes, and forms in Latin America. Whether one assesses the international, economic, social, cultural, or institutional determinants of the existence and

quality of democracy, the historical context conditioned their regional and national impact. Historical factors largely accounted for Latin America's earliest struggles for democracy and cast a distinctive mold that has shaped its democracies ever since.

To provide historical background for the current issues in political science, this study pays special attention to the new institutionalism. This book agrees with that school of thought that democratic institutions made a difference—even in inhospitable settings, and even when governments turned them into a farce. Whether fully enforceable or not, ancient Latin American constitutions and laws established norms and practices, precedents and beliefs, hopes and expectations. Even when democratic institutions were woefully defective, they still operated in significant ways and laid the groundwork for the future.

From the 1810s to the 2000s, Latin American political institutions exhibited unstable and often unenforceable constitutions, extreme centralism, hyper-presidentialism, legislative Lilliputians, conservative and ineffective judiciaries, explosive elections, and ephemeral political parties. For all these features, varying institutional designs could facilitate the probability and performance of some democracies. However, since the basic institutions remained much the same for two centuries in nearly all the countries in Latin America, it is improbable that they accounted for big variations in democratic outcomes over time and place.

Despite their significance, institutions by themselves can not fully explain the arrival, survival, or depth of democracy in Latin America. The challenge for proponents of democracy consisted not only in writing the correct laws but also in exerting the power or persuasion to get the crucial social actors to obey them. The exceptionally unequal distribution of social power made it very difficult for those institutions to elicit compliance and function properly. Their success usually depended heavily on structural and historical conditions, as well as elite consensus in favor of some form of democracy.

Among these institutions, elections were the most important. They constituted the essential, if not sufficient, condition for creating democracy. In Latin America, democracy unfolded as a protracted history of making the government actually allow, reflect, and represent widespread citizen preferences as expressed in electoral outcomes. Even when corrupted and violated, the amazingly ubiquitous elections from the 1800s to the 2000s were fiercely contested, sometimes surprisingly open to mass participation, and crucial for legitimating governments. They proved vital to the gradual incultation and institutionalization of democracy.

Theories of Democracy in Latin America

DEFINITIONS OF DEMOCRACY

In this study, the term *democracy* refers narrowly to the prevailing procedures of electoral political competition. This book basically uses a binary, minimalist definition of democratic versus authoritarian political systems. It is necessary to establish this dichotomy before analyzing the virtues and defects of any subtypes.⁴

This classification scheme is relative in three senses. First, it employs the standards appropriate to and prevalent in particular eras, since democratic expectations escalated from the early nineteenth to the late twentieth centuries. Second, for any one time period, the governments labeled as democracies might not meet some absolute or maximalist criteria. However, they were generally more freely elected, representative, constitutional, and civilian-based than those dubbed dictatorial, which were more imposed, authoritarian, arbitrary, and military-dominated. Third, movement from one broad regime type to the other indicated that a government became relatively but significantly more democratic or despotic than its predecessor. Across time and space, there were many close calls and mixed breeds.⁵

This book's definition of *democracy* emphasizes institutions. To qualify as a democracy, a political system had to select its key leaders through regular elections that were reasonably participatory, free, and fair, by the standards of the era. It also had to respect enough civil liberties to carry out these procedures. One country could be more democratic—allowing broader suffrage, holding more honest elections, and protecting more civil liberties—than another, but they both could be classified as minimally democratic in contrast with blatantly dictatorial alternatives.⁶

Some scholars also mention other requisites for democratic systems, such as the rule of law, government accountability, civilian control over the military, and even some minimal degree of social and economic equality. These indicators, however, were difficult to measure, established too high a barrier to entry, and, while important to the quality of democracy, were not necessary to distinguish broadly democratic from non-democratic political systems. Latin America should not be held to higher standards than other regimes in the same time period.⁷

At least three types of regimes in Latin America met enough of the criteria for democracies to demarcate them from the authoritarian species. First, in the nineteenth and early twentieth centuries, *constitutional* or *liberal oligarchies* or *republics* held regular elections (but with very limited participation),

excluded some key issues and agencies from public control, and limited civil liberties significantly.

Second, in the twentieth century, “restricted democracies” provided more open government on all dimensions than did aristocratic republics—but they did not deliver as much participation, liberty, or accountability as did “full democracies.” In contrast with authoritarianism or oligarchic republicanism, even restricted democracies tended to curb or eliminate property or tax qualifications for voting, enfranchise a majority of literate adult males (resulting in at least 5% of the population casting ballots), hold regular and direct popular elections for the executive and/or legislature, respect the electoral results, respond to elected officials, and defend basic civil liberties. They still were prone to ban certain parties and to succumb to frequent military interventions.

Third, in order to rise (increasingly in the twentieth century, particularly from the 1970s onward) to the level of “full democracies,” these governing systems had to also establish universal male suffrage (and eventually include females and younger people), ensure totally secret and free and fair elections, protect more civil liberties, and respond more fully to the wishes of voters. In many parts of the world, countries generally progressed from types one to two to three, though with many breakdowns and reversions along the way.⁸

Table 1.1 shows the evolution in Latin America, listing countries according to their first experience of reasonably stable (though not necessarily uninterrupted) democracy that dominated an era. Minor and short-term regimes have been omitted. While there is room to quarrel with some of these precise dates, the placement of a regime in an era is widely accepted by most scholars. For different authors, the dates chosen for this table could refer to when a regime was constitutionalized, installed, or really took effect as a republic. For example, Argentina's oligarchic republic could be dated from the constitution of 1853, the taking of power in 1862, or the national institutionalization in 1880. At the same time, Costa Rica could be entered with the passage of the constitution of 1871, or the electoral stabilization in 1889. Since the best choice is usually a combination of constitutionalism and effective rule, this table places Argentina in 1862, and Costa Rica in 1889. The most unreliable and debatable dates are for the beginning of the oligarchic republics in the nineteenth century, both because of a more turbulent history and a less extensive scholarship prior to the 1930s. Many disputes continue about the more recent full democracies, which are categorized here mainly by institutional criteria—not by the more idealized indicators of performance and quality.⁹

TABLE I.1
Major Latin American democratic regimes, 1810-2006

Country	Oligarchic republic	Restricted democracy	Full democracy
Chile	1833-1920	1920-1924	1932-1973; 1990-2006
Peru	1860-1919	1939-1948	1980-1991; 2000-2006
Argentina	1862-1912	1946-1955	1912-1930; 1983-2006
Bolivia	1884-1930		1952-1964; 1982-2006
Ecuador	1884-1925	1948-1961	1979-2006
Colombia	1886-1936	1936-1952	1958-2006
El Salvador	1886-1931	1983-1993	1993-2006
Costa Rica	1889-1947		1948-2006
Uruguay	1890-1903	1903-1919	1919-1933; 1939-1973; 1984-2006
Brazil	1891-1930		1945-1964; 1985-2006
Honduras	1895-1919		1982-2006
Panama	1904-1967	1990-1993	1994-2006
Guatemala		1986-1995	1945-1954; 1996-2000
Venezuela			1958-2006
Dom. Repub.			1970-2006
Nicaragua		1984-1989	1990-2006
Paraguay			1993-2006
Haiti		1995-2006	
Mexico			2000-2006

CAUSES OF DEMOCRACY

International Factors Since democratic trends among countries outside and inside Latin America constituted international events, they must have had international causes (unless they were pure coincidences). The first modern wave of international democratization occurred from the 1820s to the 1920s, followed by a reverse flow from the 1920s to the 1940s. The second democratic surge swept through from the 1940s to the 1960s, succeeded by a rollback from the late 1950s to the mid-1970s. Then the third global overflow of democracy cascaded from the mid-1970s to the 2000s, without ebbing back so far. In very broad terms, Latin America participated increasingly in these inundations.

Prior to these flood tides, no Western nations qualified as democratic in 1750. Then the American and French revolutions unleashed the first democratic outpouring. The rough criteria for this period were that half the adult males were eligible to vote and that the chief executive was elected periodically. Following the wars of independence, a few Latin American countries met or came close to this standard from time to time. However, they were especially prone to illegal behavior and regime collapse.

After erasing property qualifications and instituting universal male suffrage, the United States came on board in 1828, although excluding slaves.

By the 1920s, over thirty countries had reached the same stage, usually including voting by secret ballot. The most prominent were several European nations (most significantly Great Britain, France, Switzerland, Italy, and Ireland) and Argentina, although Costa Rica, Chile, and Uruguay also fit the criteria except for the size of the electorate.

After the tide went out during the 1920s and 1930s, the second forward wave washed ashore briefly from World War II to the 1960s. The beneficiaries included West Germany, Italy, Austria, Japan, South Korea, Turkey, and Greece, as well as several Latin American countries, at least temporarily: Guatemala, Brazil, Argentina, Costa Rica, Ecuador, Bolivia, Peru, Colombia, Venezuela, and the Dominican Republic. The Latin American cases were still subject to frequent deviations and breakdowns. Decolonization in Asia and Africa also produced a few shaky democracies.

Thereafter, the second global authoritarian riptide inundated Latin America. By the mid-1970s, one-third of the thirty-two democracies that had been alive in the world in 1958 had died. Whereas nine democracies had flourished in South America in 1960, only those in Colombia and Venezuela survived by the end of 1973.

In the third democratic flood beginning in the mid-1970s, over 30 democracies supplanted dictatorships in Europe, Asia, and Latin America. The tsunami even swept away communist regimes in Europe. Rising higher than ever before, that tidal wave lifted approximately sixty countries, or almost half the nations in the world, to democratic status. Only about half that number had been democratic at the previous peak in 1922, but they had also accounted for over 45 percent of the states in the world at that time.¹⁰

In this long view of history, *diffusion* was a powerful instigator of democracy, both from outside Latin America and within Latin America. Huntington wrote, "New democracies are thus less the result of cumulative, necessary, predictable, and systematic developments than of historical busts and booms, global opinion climates, shifting opportunities, and contingent preferences." As evidenced by regional reactions to these international currents, external forces provided crucial impetus for regime changes and democratization in Latin America. At times, currents from overseas furthered democratization in Latin America, which then spread from one country to another. Over two centuries, that contagion enveloped more and more countries. Those foreign factors included strategic, economic, and intellectual impulses, whether arriving as events, trends, influences, or policies. They exerted the most impact when they dovetailed with the preferences of domestic winning political groups.¹¹

TABLE 1.2
Historical regime trends in Latin America, 1400s–2000s

Era	Regime trend
1400s–1500s	Iberian conquest
1500s–1800s	Iberian empires
1810s–1820s	Independent republics
1820s–1870s	Caudillo dictatorships
1880s–1920s	Oligarchic republics
1930s	Military dictatorships
1940s–1970s	Popular democracies
1980s–2000s	Neoliberal democracies

In the even longer view from the late 1400s to the early 2000s, Latin America experienced three seismic regime changes, all facilitated by international forces. The first great transformation transpired during the conquest at the turn of the fifteenth and sixteenth centuries. The Spanish and Portuguese invaders replaced the indigenous rulers with their own in only four decades. Warfare in Europe detonated the second cataclysm at the start of the nineteenth century. Through the battles for independence, the Latin Americans supplanted external absolutism with republics in less than two decades. They crafted their new governments largely from United States, French, and Spanish blueprints.

Later in the nineteenth century, oligarchic republicanism in Latin America reflected the stabilization of the export economies and the imitation of political systems in the United States and Western Europe. Another regional regime change of lesser magnitude marched through with the military coups in the 1930s in the aftermath of the Great Depression. An even smaller ripple brought the brief opening to democracy and the left in the mid-1940s at the end of World War II.

The third major tumbling of dominoes occurred from the late 1970s to the 2000s. The foreign debt crisis and other international trends accelerated Latin America's democratic tsunami, bringing down nearly all the authoritarian regimes in a little over two decades. U.S. preferences for representative democracies held more sway than ever before as it exerted unparalleled hegemony as the sole superpower.¹² Table 1.2 shows the historical regime trends in Latin America from the 1400s to the 2000s.

From the 1800s to the 2000s, international economic factors influenced political possibilities and patterns. In the middle of the nineteenth century, they reinforced export structures that fortified landed barons, the class usually most opposed to open democracy. The economically predominant British seldom cared much about Latin America's internal political systems. As an open international trading and lending system stabilized toward the end of the 1800s, Latin American landowners felt secure enough to consolidate protected democracies in the form of aristocratic republics. The Great Depression's disruption of global trade and finance at the start of the 1930s discredited the oligarchic system of rule and facilitated dictatorships. The Depression and World War II also boosted import-substituting industrialization, which expanded the bourgeoisie, the middle sectors, and urban labor—all seeking political inclusion, sometimes through democratic means.

In the twentieth century, the new external economic behemoth, the United States, vacillated in its regime preferences. From the 1890s to the 1920s, it used force to install republicanism (however superficial and evanes-

cent) in Central America and the Caribbean. From the 1930s to the 1940s, it backed away from meddling in domestic politics in the region and tolerated despotism. Then Washington briefly sympathized with democracy in the wake of World War II. During the Cold War, the Colossus of the North sometimes promoted democracy but frequently backed anti-communist military dictatorships. When the second international debt debacle undermined dictatorships in the 1980s, it cleared the way for the latest stampede of democracies, usually endorsed by the United States.¹³

Domestic Factors: Economic Although international forces must be examined to explain concurrent democratization in multiple countries, their impact depended on domestic factors within those countries. Some posited preconditions, such as certain values (e.g., Protestantism), cultures (e.g., Anglo-Saxon), social structures (e.g., weak landowners versus a strong bourgeoisie), civil societies (e.g., vibrant voluntary associations), or economic configurations (e.g., lack of dependency) have generally not fared well under scholarly scrutiny. Although these factors may have facilitated democracy under certain circumstances, they did not provide satisfactory explanations for variations in democracy among countries or eras. Latin American nations with similar cultural traditions, social patterns, and economic circumstances had quite different experiences with democracy. Despite their significant contributions, most structural theories fell into disrepute in the 1980s, when democratization, to varying degrees, suddenly engulfed the region—not to mention other parts of the world—with seeming disregard for divergent cultural, social, or economic conditions. Consequently, this study emphasizes institutional analyses within historical contexts rather than a structural or sociocultural approach.¹⁴

The structural economic condition that has stood up best under the onslaught of research is that a higher level of capitalist socioeconomic development has been conducive to democracy, and dire poverty has not. The

sturdiest democracies in the modern world have tended to have high per capita incomes combined with elevated levels of literacy, industrialization, and urbanization. These advances generated both the social groups to press for inclusion and the wherewithal to satisfy demands. Although this correlation between modernization and democracy has held up well for large groups of countries—particularly at the extreme high and low levels of income—it has not been determinate for individual cases.

The modernization thesis that more socioeconomically developed countries were more likely to be democratic has not fit Latin America as well as the rest of the globe, but it has stood up fairly well historically within the region, even during the nineteenth century. From 1900 through the 1930s, the Latin American countries with higher GDP per capita were more likely to become democratic, especially in the Southern Cone (Chile, Argentina, and Uruguay). From the 1940s to the 1970s, that pattern continued, with the at least temporary addition of democracies in Brazil, Colombia, Costa Rica, and to a lesser extent Venezuela and Peru. Meanwhile, the poorest countries in Central America, the Caribbean, and the Central Andes usually enjoyed much less success with democracy.¹⁵

Domestic Factors: Social and Cultural Although international and economic factors played some role in encouraging and sustaining democracy, national actors were also essential, sometimes in the form of social classes.¹⁶ In Latin America, all social classes historically exhibited some ambivalence about democracy. The landed oligarchy rarely supported unrestricted democratization, although sometimes it backed limited democratic measures, usually to increase its own base of support. One example came from the rural conservative elites who endorsed suffrage for literate males in Chile in 1874 to reduce the control over the electorate of the incumbent government. Another instance found the agricultural oligarchs of Colombia installing republicanism with safeguards for minority representation in 1910 to preserve the peace after the War of a Thousand Days. Still another case featured the highland conservatives in Ecuador becoming the first group in Latin America to implement female suffrage, doing so in 1929 to preserve their electoral base by bringing pro-clerical women to the voting booths.¹⁷

As in Europe, the bourgeoisie in Latin America did not take command of democratization, although it cooperated in countries like Chile, Colombia, and Uruguay. In most cases, urban economic elites were either too weak or too linked to the rural landowners to bring about democracy on their own. The growing urban middle sectors—however unreliable and divided—

sometimes allied with dissident elites or upstart workers to install democracies. In some cases, the middle classes rallied the workers to pressure for openings from the upper class but then turned against further working-class advances, at times supporting military coups.¹⁸

In all countries, the role of elites proved crucial to the rise or fall of democracy. Social power relationships more than institutional rules determined political behavior and outcomes. These two spheres interacted. It was important to get the institutions right, but until the upper classes and their allies accepted the laws, they would not function properly.

Latin American elites long resisted fully democratic institutions because glaring inequalities filled them with trepidation about the under classes. However, when the well-to-do concluded that it was in their self-interest and did not jeopardize their security, the upper and middle strata incorporated the subalterns into subordinate participation in democracy. The dominant groups admitted the unprivileged under four conditions: (1) when their mobilization of the lower classes against counter-elites helped resolve intra-elite conflicts; (2) when the masses' inclusion in and acceptance of the system gave it more legitimacy and stability with less costly repression; (3) when the ruling classes believed they could maximize gains or minimize losses through democratization; and (4) when their inclusiveness pleased powerful foreign observers.¹⁹

When the elites accepted democracy in Latin America, as well as elsewhere, they imposed procedural and substantive limits. This paradox illustrated "the dilemma that stabilization of formal democracy appears to require serious restrictions on substantive democracy because of the need for protection of elite interests." The less democracies threatened upper and middle-class assets and perquisites with socioeconomic reforms for the unprivileged, the more likely they were to exist and endure. The less elections mattered, the more likely elections were to occur.²⁰

Until the late twentieth century, the armed forces and the Roman Catholic Church served the upper class and impeded democracy. Military coups d'état toppled democracies, as well as dictatorships, from independence onward. They became a regular feature of the political system. From 1823 to 1966, 351 coups removed presidents by force or threat of force. They occurred with great frequency from the 1840s through the 1850s, followed by a period of stability reaching low points of coups in the 1880s and 1920s. From the 1850s to the 1900s, the incidence of coups correlated fairly well with downturns in international trade.

From 1900 through 2000, at least 167 successful coups ousted governments (though not necessarily democracies), for an average of 1.6 coups

per year or 8.8 per country, with a high of 15 in Bolivia and a low of 1 in Uruguay. The rate declined over the century, hitting bottom from 1990 on. In the twentieth century, the greatest numbers took place during the pressures on the oligarchic order from 1906 to 1919 and during the crisis spawned by the Great Depression from 1930 to 1939. For the subordinate classes, "the strategic problem of transition is to get to democracy without being either killed by those who have arms or starved by those who control productive resources."²¹

Throughout most of Latin American history, the Roman Catholic Church also obstructed the development of democracy by siding with the rich and mighty. From the conquest onward, the Church facilitated the social and political control of the under classes. Only beginning in the early 1960s did it contribute significantly to democracy by strengthening civil society, opposing military dictatorships, defending human rights, and supporting social reform for the poor.²²

In contrast with Europe, the smaller working class played less of a role in democratization in Latin America. It had the greatest impact in the most urbanized, industrialized countries: Argentina, Uruguay, and Chile. It mainly propelled early democratization as a destabilizing labor force and as a backer of middle-class movements. Elitist Latin American democratic transitions in the late nineteenth and early twentieth centuries usually did not involve laborers to any large extent. Instead, those regime changes typically resulted from either elite calculations about expanding electoral support or pressures for inclusion from excluded upper- and middle-class groups. However, some of those privileged sectors also hoped that democratization would defuse and co-opt disruptive working-class movements.

By the early twentieth century, labor's ability to demand political participation as well as social justice increased as it grew in the cities. During that century, it also threw its lot in with successful multi-class revolutionary movements promising democratization in Mexico (1910), Bolivia (1952), Cuba (1959), and Nicaragua (1979). From the 1930s through the 2000s, workers became a bigger force to reckon with. Although normally supporting democracy as well as populist and leftist candidates, they sometimes backed authoritarian populists or revolutionaries.

During the tsunami, the organized working class significantly promoted democratization. Thereafter, the shrinkage of organized labor slashed its leverage on those neoliberal, protected democracies. However large or small its role in particular countries, the labor movement was usually one of the social actors most oppressed by rightwing authoritarianism, and most committed to democracy—especially the popular variety.²³

The higher the level of effective representation of the lower classes and their demands, the less likely and stable have democracies been in Latin America, although they were more democratic in terms of popular participation and rewards. Up to the 1930s, the oligarchic republics granted little representation to the popular classes. Consequently, those limited democracies were quite durable, albeit not very widespread. From the 1930s to the 1970s, representation of the poor and their needs accelerated as did the number of democracies, but durability declined. From the 1970s to the 2000s, governments deemphasized mobilization, representation, and mollification of the underserved, while democracies became more numerous and long-lasting. Given the extremely inequitable distribution of social power, protected democracies exceeded their popular competitors in longevity.²⁴

During these eras, Latin American electoral democracies varied along two main dimensions: contestation and participation. Some allowed a great deal of debate over fundamental differences of opinion, but only among a small group of voters, elected officials, and stakeholders. Others kept explosive issues off the agenda but permitted widespread electoral inclusion of citizens. The broader the space for contestation and participation, the more open and democratic but less durable the political system.

Historically, Latin America exhibited high contestation and low participation in the post-independence period from the 1820s to the 1870s, low contestation and low participation under oligarchic republics from the 1880s to the 1920s, high contestation and high participation during the zenith of populism from the 1930s to the 1970s, and low contestation and high participation under neoliberalism from the 1980s to the 1990s. When very high levels of contestation and conflict coincided between the government and its opponents, then each was likely to try to exclude the other. This phenomenon occurred in oligarchic battles over the state in most of the nineteenth century and in clashes between elites and masses in the twentieth century. As a result, numerous dictatorships banned unacceptable players, be they regional chieftains in the nineteenth century or leftist populists in the twentieth.²⁵ Table 1.3 shows broad chronological levels of contestation, participation, and regime durability.

Just as class conflicts may explain the likelihood and character of democracy, so might ethnic friction. Theoretically, countries with the least severe ethnic, racial, or linguistic cleavages should have had a better chance of instilling and preserving democracy. They seemed more likely to be socially compatible and peaceful. Their ruling classes felt less apprehensive that democratic openness would unleash ethnic competition and strife. Conversely, more diverse populations heightened the racist paranoia and hostility of the

TABLE 1.3
Historical evolution of contestation, participation, and durability

Regimes by era	Contestation	Participation	Durability
1820s–1870s	High	Low	Low
1880s–1920s	Low	Low	High
1930s–1970s	High	High	Low
1980s–2000s	Low	High	High

SOURCE: Based on Hardyn and Valenzuela, “Democracy”; Dahl, *Polyarchy*, 4–5, 14–16; Smith, *Democracy*, 313–326.

upper strata, rendering them less willing to expand political participation. Even though ethnic fissures seldom erupted in Latin American politics, they deeply divided some societies.

In the long run, greater ethnic and racial homogeneity correlated fairly well with greater success for democracies in Chile, Argentina, Uruguay, Costa Rica, Colombia, and Venezuela—although Argentina showed that demographic uniformity was not a sufficient condition for stable democracy. Conversely, greater ethnic and racial heterogeneity correlated well with lesser democratic success in Mexico, Central America (except Costa Rica), the Caribbean, Ecuador, Peru, Bolivia, Paraguay, and Brazil, principally because elites were wary of extending democratic rights to indigenous, African American, and mixed peoples.

The more homogeneous countries also tended to have higher incomes. Some were ambiguous cases—for example Mexico, Cuba, and Brazil with relatively high incomes but also high heterogeneity—with only Brazil faring even moderately well with democracy. In all democracies, a contradiction persevered between the myth of legal equality and the reality of socioeconomic inequality. When that gap became extreme, as in the more heterogeneous and underdeveloped countries of Latin America, sustaining democratic legality became more difficult.²⁶

Domestic Factors: Historical History, as laid forth in this book, provides a powerful explanation for the general evolution of democracy in Latin America and for the varying trajectories of particular countries. Those countries with the most experience with democracy enjoyed the highest probability of becoming and staying democratic. The continuity from the nineteenth through the twentieth centuries in the sub-regions and countries most and least likely to be democratic lends credence to this hypothesis. The most likely were always in South America—especially Colombia and the Southern Cone, but not the Central Andes or Paraguay. The least

likely remained in Mexico, Central America (except Costa Rica), and the Caribbean. Only a combination of history and social science can fully explain why and how the more experienced countries got on the democratic track in the first place.²⁷

The authoritarian colonial legacy—political, institutional, social, and cultural—from Iberia hampered the development of democracy, most notably in the first decades of the nineteenth century. That heritage—along with poverty, illiteracy, and inequality—made rapid democratic success unlikely anywhere in the region. However, that common birthright can not explain political variation within or among the Latin American countries, especially in the long run and particularly in the exceptional positive cases.

Nor can the degree of Spanish colonial domination fully account for the subsequent fate of democracy. It is noteworthy that the continental leadership of independence came from the outlying colonies of Venezuela, Colombia, and Argentina, not the imperial centers of Mexico and Peru. Subsequently healthy republics like Colombia, Chile, Uruguay, and Argentina emerged from the periphery of the empire, but so did rickety and seldom democratic states like Venezuela and Paraguay.

Those countries—Mexico and Peru—that had constituted the core of the Indian and Spanish empires experienced crippling problems establishing democracies, as did their satellites in Central America and the Central Andes. However, countries in the Caribbean—not counting their English-speaking neighbors—with no great Indian or imperial legacy fared just as poorly. Countries heavily reliant on slavery—notably the Caribbean and Brazil—also tended to encounter more obstacles installing democracy. Both colonial and racial/ethnic legacies militated against democratic success.

The wars of independence and their aftermath also left Spanish America ill-equipped to found stable republics. The removal of the crown created a legitimacy vacuum. The years of fratricide and the resulting strength of contending private and public armies ravaged the new countries. So did tensions between the capital city and the outlying provinces. It took decades of civil discord before most of these countries could bring about enough order to construct functioning governments, “since the conflict of parties has been not infrequently transferred from the chamber to the camp, and the issue decided not by counting heads but by breaking them.”²⁸

From the 1810s to the 1870s, authoritarianism ran rampant. In the rubble left by men on horseback (“caudillos”), an archaeology of democracy is necessary to excavate the relics of rudimentary precursors, precedents, and aspirations. Although normally failing, the democratic experiments in those years laid the foundations for the later political systems. In those decades,

many of the institutional designs and behavior patterns set the mold into the 2000s.

Furthermore, those trials and tribulations resulted in the first episodes of partial success at republicanism in a few countries. They began to travel on a road to democracy that would serve them well in the future, a virtuous path dependence. After many false starts and detours, they got on a learning curve of practicing democracy. Eventually, their elites and non-elites would come to accept it as the best system for resolving political conflicts without bloodshed.²⁹

Restricted or full democratization may be more successful following a lengthy period of restrained oligarchic competition, the most that could be expected in the nineteenth century. As that protected system took hold in some countries in the second half of the 1800s, it allowed for the inculcation of democratic practices among elites and some lower social strata before the government threw the arena open to massive participation. Thus, the new participants could be socialized gradually into democratic behavior and might not try to eject the older players.

Over time, the decades of stable oligarchic republicanism in the late nineteenth and early twentieth centuries facilitated more inclusive democratic successes in Chile and Uruguay, and to a lesser extent in Colombia and Costa Rica. However, that staging did not guarantee a smooth or benign evolution. Those countries also suffered democratic breakdowns. Meanwhile, Argentina failed to stay on track from oligarchic republicanism to restricted and then full democracy until after weathering decades of intermittent authoritarianism.³⁰

Such gradual sequencing was possible from independence to World War II, but rarely thereafter. Once countries established full democracy, they became unlikely to return to oligarchic or restricted democracy, as well as mild authoritarianism. Accelerating demands from workers and peasants for simultaneous participation and contestation—for political rights and social justice—undelay many of the disruptions from the 1940s to the 1970s. In that period, once certain issues, rights, and contenders burst onto the political stage, it became difficult to kick them off without extreme coercion under a dictatorship.³¹

From the nineteenth to the twentieth centuries, Latin American democracies varied over time and space as to who could participate, who could govern, how they could govern, and over what they could govern. Logically but not linearly, that evolution led toward greater inclusiveness in the ballot box and in the halls of government, greater protection for civil liberties, greater responsiveness to citizen expectations, and greater breadth of issues

in government purview. With numerous exceptions and qualifications, this trajectory characterized the history of popular and populist democracy from the 1930s to the 1970s, when the lower classes gained access to government and its resources. Then a rash of military takeovers choked off their ascent.

Following extraordinarily repressive authoritarian regimes in the 1960s and 1970s, democratization with neoliberalism engulfed the region from the 1970s to the 2000s. During the tsunami, more Latin American countries became democratic than ever before, to enthusiastic acclaim at home and abroad. However, they adopted contradictory democracies. Formally democratic governments took power and improved widespread participation in elections and offices. But at the same time, they often employed technocrats to constrain accountability, restricted civil liberties, discouraged working-class activism, and, above all, banished major social issues, such as income and land redistribution, from the public agenda. For the marginalized majority, these restraints bred increasing frustration with protected democracies that allowed for their participation but not for satisfaction of their needs.

To an extent, the new democracies privileged form over substance. They restored the previous procedural advances of the mid-twentieth century (e.g., voting rights for women and illiterates) but returned to the substantive limitations of the nineteenth century (e.g., minimal state interference with the market, private property, or the overall distribution of economic and social power). In large part, governments erected these boundaries on policies to persuade the socioeconomic elites and their military allies, as well as the United States, to accept the resurrection of democratic institutions. By the turn of the century, lower-class protests against these neoliberal economic and political models catapulted several new leftists to the presidency. Once again, they used democratic mechanisms to address poverty and inequality.³²

Protected versus Popular Concepts of Democracy

Two other factors that accounted for the frequency and character of democracy in Latin America were ideas and institutions. From independence onward, the two main schools of thought favored either *protected* or *popular* democracies. The former often criticized standard Western democracy from the right, as a dangerous opening to mediocrity, anarchy, or revolution. The latter did so from the left, as an oligarchic, tyrannical, and reactionary deception of the unprivileged. Both these variants of democracy reacted to the issue of mass participation and benefits in highly stratified

societies. The first group erected formal and informal barriers, while the second opened pathways. Neither school stressed narrow legal political equality as enshrined in liberal, procedural, representative democracy, associated with the U.S. founding fathers, particularly Thomas Jefferson. Proponents of this classic liberal democracy wedged between the two opposites, but came closer to the protected model.

The distinction between protected and popular democracies referred both to the institutional rules and, above all, the social content of oligarchic republics, restricted democracies, and full democracies. Given the escalating legal inclusiveness of these three institutional types, protected democracies appeared in all three, but popular democracies only arose in restricted and, most commonly, full democratic regimes. Both the rules and, more directly, the distribution and deployment of socioeconomic power determined whether those restricted and full democracies gravitated toward the protected or popular formulation. Through extralegal economic, social, ideological, and military leverage, the rich and well-born usually shaped how the institutions were used.

Given the privileges of the dominant classes, a preference for protected democracy prevailed most of the time. This priority for elitist order became a recurrent anthem on the right, from Venezuelan Simon Bolívar in the 1820s, to Chilean Diego Portales in the 1830s, to Argentines Juan Bautista Alberdi and Domingo Faustino Sarmiento in the 1850s, to Uruguayan José Enrique Rodó in the 1900s, to Chilean Augusto Pinochet and his plans in the 1980s for a democracy constrained by authoritarian features. By contrast, popular democracy became a lasting refrain on the left from Mexican Miguel Hidalgo in the 1810s, to the Mexican revolutionaries in the 1910s, to Peruvian Victor Raul Haya de la Torre in the 1930s, to the Guatemalan revolutionaries and Argentine Juan Peron and Venezuelan Romulo Betancourt in the 1940s, to the National Revolutionary Movement in Bolivia in the 1950s, to Cuban Fidel Castro in the 1960s, to Chilean Salvador Allende and the Nicaraguan Sandinistas in the 1970s, to Peruvian Alan García in the 1980s, to Venezuelan Hugo Chávez and Bolivian Evo Morales and Ecuadorean Rafael Correa in the 2000s. They placed a greater emphasis on mass mobilization dedicated to social equality.³³

Either variety could become paternalistic or even authoritarian. The rightist version sometimes led to limited, oligarchic, elitist democracies to keep the masses in check (e.g., Portales in Chile), or it frequently became more reactionary in conservative dictatorships to repress the working classes (e.g., Pinochet in Chile). The leftist brand often produced populist, mass, or social democracies to incorporate the poor (e.g., Betancourt in Venezuela

and Allende in Chile), or, in rare cases, it became more radical in popular dictatorships to repress the elites (e.g., the revolutionaries in Mexico and Cuba).

Both poles became more extreme by the 1960s and 1970s, as the lower classes escalated their demands for direct representation and benefits. This polarization generated righthwing protected (e.g., Pinochet) and, much less commonly, lefthwing popular (e.g., Castro) autocracies. Then the right and the left settled into an uneasy truce or stalemate from the 1980s to the 2000s. The tsunami resulted in contradictory protected democracies that enveloped all social strata but discouraged populism, mass mobilization, and social reform.

Under the popular category, the leaders usually forged direct, personal, unmediated bonds with the working classes, transcending the representative institutions hallowed in liberal democracy. Although most of them channeled those popular mobilizations into democratic institutions, a few funneled them into authoritarian systems. Revolutionaries like those in Mexico and Cuba sometimes rallied popular support in the name of democracy and then converted it into a base for autocratic rule. Some populists, like Getulio Vargas in Brazil and Juan Peron in Argentina, operated in both democratic and authoritarian modes. This ambivalence indicated their greater interest in mass incorporation than in procedural democracy per se:

in Latin America the democratic ethos has been much closer to the egalitarian, communitarian, integrative ideal than to the libertarian, individualistic one. Democratization has been understood in the collective historical memory more as a process of incorporating and constituting a collectivity—that is, more as social democratization or ‘fundamental democratization’—than as the building of government institutions or political democratization. The idea of democracy is associated more with the constitution of collective identities, the reduction of inequalities, and social integration and cohesion, than with the liberal ethos and electoral returns.³⁴

This polarization between protected and popular views of democracy resembled the duel between *élite* and *folk* cultures described by historian E. Bradford Burns. He saw the latter as a demand for autonomous social equality. He found it erupting during the independence period mainly in the Haitian (e.g., Toussaint L'Ouverture) and Mexican insurrections (e.g., Miguel Hidalgo and Jose Maria Morelos), in the nineteenth century behind certain charismatic and dictatorial “populist caudillos” (e.g., Jose Gaspar Rodriguez de Francia in Paraguay and Juan Manuel de Rosas in

Then throughout most of Latin America, the rightwing authoritarians imposed dictatorships to demolish popular democracy and pave the way to a return of protected democracy.

After the restoration of democracy from the late 1970s to the 2000s, the iconic liberal, representative model of the United States and Western Europe attracted more adherents than ever before. Many Latin Americans saw that system as a way to avoid rightist or leftist extremes. Most governments cleaved to a procedural, institutional, formal version of democracy, designed to downplay mass activation and socioeconomic redistribution. As in the past, progressives complained that the rebirth of a version of protected democracy once again left the poor behind. In reaction, popular democracy reemerged behind such figures as Hugo Chávez and Evo Morales, though less radical than some of their predecessors in the 1960s and 1970s.³⁷

Conclusion

From the 1800s to the 2000s, many Latin Americans struggled to construct democracies or at least republics in an inauspicious environment of authoritarianism, poverty, and inequality. Although encountering many more defeats than victories, they slowly gained ground against daunting odds. Their original intellectual and institutional efforts set the region on a course it has followed ever since. The founders cast an indelible dye.

The leaders grappled with how to build democracies that could withstand both tyranny and anarchy. They faced their biggest challenge in how to achieve both order and liberty in societies divided by extreme inequities based on class, ethnic, and racial prejudices. They responded to this dilemma by favoring protected or popular democracies. Over two centuries, those two visions clashed in regimes that evolved from oligarchic republics to restricted democracies to full democracies. In the process, some of Latin America's more advanced democracies caught up with the vanguard in the United States and Europe.

To explain the Latin Americans' frequent failures and infrequent successes—especially in a particular country—requires a combination of structural and contingent analyses. The first approach establishes the limits on and probabilities of democracy under certain international and domestic socioeconomic conditions. The second examines historical circumstances, ideas, institutions, actors, and actions. However, the long view shows that underlying conditions still had historical and continuing relevance.³⁸

From these dual perspectives, Latin American democracy has been most likely to succeed in a favorable international climate, in the more developed

Argentina) who identified with the common people, and in the twentieth century revolutions in Mexico, Guatemala, Bolivia, Cuba, and Nicaragua. Many of the movements praised by Burns, however, did not commit to representative democracy. Nevertheless, in the twentieth century social revolutions, many of their supporters championed the cause of electoral democracy, and all the revolutions promised democratic government when fighting for power.³⁵

Historian Arthur P. Whitaker made a comparable distinction between *conservative democracy* and *radical democracy*. In the years during and after the wars of independence, the radicals wanted to include the impoverished majority immediately through bullets and ballots, while the conservatives preferred republics guided by a small elite until the common people became civilized enough for self-government. The elitists claimed to be carrying on the anti-Jacobin legacy of Bolívar. As the nineteenth century progressed, they came to dominate, rejecting the liberal idealism spawned in Europe and the United States and imbibed by some Latin Americans in the late-eighteenth and early-nineteenth centuries. The rightwingers advocated protected democracy to adapt Western political thought to Latin American realities.

As the debate wore on, the two camps added economic issues to their dispute. In the latter decades of the nineteenth century, Whitaker's conservatives came to propose stern rule by a privileged elite in the political sphere, combined with free enterprise in the economic arena, very similar to the position of authoritarian capitalists in the twentieth century. The late nineteenth century conservatives—some known as *Positivists*—claimed that material growth under very open economic democracy but very exclusionary political democracy would eventually raise the lower social orders up to a level of culture and education adequate for political participation.

By the early decades of the twentieth century, however, Whitaker's radicals pointed out that the protected oligarchic model increased the gap between rich and poor, alienated the vast majority, and perpetuated itself. Therefore they called for wide open political democracy and for state intervention to promote socioeconomic equality. They shifted the emphasis from political to socioeconomic democracy, a position that came to be identified with leftists, populists, and popular democracy.³⁶

By the 1960s and the 1970s, some advocates of the radical version moved farther left to proclaim socialist revolution. Meanwhile some proponents of the conservative variety shifted farther right to support reactionary authoritarian and free-market regimes. The heyday of popular democracies ended on September 11, 1973, with the overthrow of President Allende in Chile, who went farther than any other democratic leader to promote socialism.

of contending élites about their competitive advantages. While most electoral regulations maintained narrow suffrage, some permitted surprisingly broad participation. At least in law, several countries lowered the voting age, enacted universal male suffrage, enrolled illiterates, and instituted secret and compulsory voting. In a few countries, political parties became more modern, institutionalized, and consequential. A handful also began to represent middle and working class constituents in elections and government offices.

Just as the post-independence years planted seeds for export growth and oligarchic republicanism, so the precursors of the 1930s to the 1970s era of mass politics emerged from the 1880s to the 1920s. The oligarchy's stable constitutional, electoral, representative system allowed democratic institutions, practices, and desires to develop. Continued economic and urban growth generated rising middle and working class demands for inclusion. Incipient populists rallied the underprivileged.

In response, some governments tried to resolve the growing contradiction between their official commitment to democracy and their actual marginalization of the mobilizing majority through electoral restrictions, patron-client networks, and fraud. Others reacted to popular pressures with repression or partial incorporation. The difficulty of sustaining democracy without the people paved the way to popular democracy in the next period.

When the classic liberal economic system of the 1880s to the 1920s collapsed in the 1930s, so did many of Latin America's classic liberal political systems. Whereas the debt crisis of the 1980s would undermine many military dictatorships, the debt debacle of the 1930s scuttled many civilian republics, however oligarchic. The limited advances made under those republics as well as the discrediting of their rule during the Great Crash set the stage for the coming era of mass politics.

Although primarily authoritarian regimes seized power in the early thirties, they soon faced unprecedented challenges from middle and working class advocates of democratic social reform. In the next period from the 1930s to the 1970s, popular democracy would supersede protected democracy in several countries. Governments would rise to new heights of democracy, and then sink to new lows of tyranny.

Chapter 6

Populist Democracy, 1930s–1970s

In contrast with the era of oligarchic republicanism, protected democracy now gradually gave ground to popular democracy, usually in the form of populism. Neither protected democracies nor dictatorships disappeared from Latin America, but they increasingly contested control of the state with the new popular forces. In many countries, both social actors and political institutions moved toward popular democracy, yet the institutions lagged behind. Legislatures, judiciaries, and the armed forces proved most resistant to change, although even some of them became more receptive to the lower classes.

In tune with popular pressures, constitutions incorporated more individual and social rights. Presidents responded increasingly to mass constituencies and to the desires for national development. They expanded state programs for social welfare and economic modernization. Elections became more inclusive, participatory, secret, and honest. They encompassed many more women, younger people, illiterates, and urban and rural laborers. As a result, voting became more consequential for the marginalized majority. Political parties multiplied, adding many populists and leftists representing the working classes.

What changed more than the basic structure of political institutions was how those institutions were used. Popular leaders and followers tried to make these long-struggling democratic institutions live up to their ancient promises. Their efforts responded to the social changes accumulating since

the late nineteenth century, especially in the mushrooming cities. Reformers took advantage of inherited models of constitutions, presidencies, legislatures, judiciaries, elections, and political parties to mobilize the middle and lower classes for participation and benefits.

Following the Great Depression's disruption of oligarchic rule, many Latin American countries eventually responded to the crises of participation, legitimization, growth, and distribution with a populist formula. It emphasized vertical, multi-class mobilization behind charismatic leaders committed to nationalistic import-substituting industrialization and a limited welfare state. This inclusionary popular nationalism extolled the common people, particularly urban workers, as the foundation of government authority.¹ From the 1930s to the late 1970s, democratic governments exhibiting fully or partially populist leadership styles, social coalitions, and/or reformist programs took office in the countries following, arrayed from the earliest to latest arrivals: Chile (1938–1948 and 1970–1973); Ecuador (1944–1948, 1952–1958, 1960–1961, and 1968–1972); Guatemala (1945–1954); Venezuela (1945–1948 and 1958–1963); Peru (1945–1948); Argentina (1946–1955 and 1973–1976); Brazil (1951–1964); and Bolivia (1952–1964).

While populism became the prevalent form of popular democracy, it also surfaced in inclusionary authoritarianism, for example under rare reformist military rulers in Peru from 1968 to 1975 and Ecuador from 1973 to 1976. Although most populist leaders channeled mass activation through electoral politics, a few relied on more traditional hierarchical methods, reminiscent of nineteenth century popular caudillos. Even a couple of elected populists sometimes behaved in authoritarian style once in office, notably Juan Perón in Argentina and José María Velasco Ibarra in Ecuador. Nevertheless, populism in general propelled democracy forward, both by encouraging democratic behavior and by enrolling lower class groups and their quest for social justice in political life.²

In response, the élites scrambled to co-opt or crush these movements. When the well-to-do feared that popular democracy jeopardized upper and middle class privileges, they imposed protected democracies or exclusionary authoritarianism. Some resorted to unusually barbaric dictatorships by the armed forces.

From the 1930s to the 1970s, no dominant regime pattern took hold. Although democratic institutions became broader and sturdier, they made neither steady nor even progress. Instead, democracy alternated with despotism. At the same time, a trajectory of polarization evolved. As many democracies became more populist and reformist, dictatorships became more repressive and reactionary.

From 1900 through 2000, nearly a majority of regimes in Latin America qualified as authoritarian rather than democratic, whether oligarchic, restricted, or full democracies. Autocracies accounted for a majority of regimes from 1900 to the 1970s, but more and more inclusive democracies replaced oligarchic republics from the 1930s to the 1970s. Then from 1978 to the 2000s, full democracies prevailed as a majority of all regimes. Throughout these decades, once a more open democracy replaced an oligarchic republic, the latter regime never returned, although dictatorships often stepped back in.³

Amidst these vicissitudes, the historically most democratic countries still tended to have the most success with that regime from the 1930s to the late 1970s. Restricted or fully democratic governments enjoyed the most years, in descending order, in Chile (1932–1973), Colombia (1930–1952 and 1958–1970s), Uruguay (1939–1973), Costa Rica (1948–1970s), and Venezuela (1945–1948 and 1958–1970s). Following close behind were Brazil (1945–1964), Ecuador (1948–1961), Argentina (1946–1955 and 1973–1976), Bolivia (1952–1964), Peru (1939–1948), and Guatemala (1945–1954).⁴ During these decades, Latin America had to adjust to three seismic global transformations: the Great Depression, World War II, and the Cold War. In the 1930s in the region, the depression mainly capsized oligarchic republics or protected democracies. This economic shock ushered in a dictatorial decade. Anti-democratic ideologies in Europe and the United States' Good Neighbor Policy's determination to tolerate all types of regimes south of the border reinforced authoritarianism.

From 1930 to 1934, thirteen successful coups rocked Latin America. From 1928 to 1930 and 1932 to 1934, the region switched from fourteen democracies (albeit oligarchic republics) and six dictatorships (exclusionary despotisms) to ten democracies and ten dictatorships. By the end of that decade, seven more coups took place, and Bolivia, Ecuador, Nicaragua, Paraguay, and Peru also moved firmly into the dictatorial camp. After initially suppressing populist movements, the right-wing authoritarians had to keep holding the lid on or begin to accommodate the effervescence from below. In the same period, most of Central America and the Caribbean fell to or remained under tyrants. Some of the most notorious and longest-lasting despots seized power in the countries that U.S. troops vacated, notably Anastasio Somoza in Nicaragua and Rafael Trujillo in the Dominican Republic. Mexico continued under the mild authoritarian rule of the revolutionary élites.

In the 1930s, Chile constituted one democratic exception. Having been oppressed by a dictator when the depression struck, the country then confronted demonstrations calling for a return to civilian rule. It switched back

to its tradition of a democratic government in 1932 and stayed there until 1973. Colombia provided another bright spot. It reacted to the economic plunge by changing electorally from the Conservative to the Liberal parties in 1930 rather than trading in democracy for dictatorship.⁵

From 1946 to 1988 in the ten countries of South America, forty-seven regimes held power, twenty-six democratic and twenty-one authoritarian, the former reigning 59 percent of the forty-three years and the latter 41 percent.⁶ In the 1940s and 1950s, optimism grew that democracy was spreading and lasting in large parts of the hemisphere. But dictators dashed those hopes repeatedly, first after the spike of democratization in the aftermath of World War II, second after the "twilight of the tyrants" in the 1950s, and third after the transient gains during the Alliance for Progress in the early 1960s. By the middle of the 1970s, the military had the region firmly under lock and key. According to one calculation, Latin American hosted eight democracies in 1950, six in 1955, twelve in 1959, and five in 1976. From 1950 to 1990, Latin American regimes suffered the most instability of all world areas; 141 countries around the globe experienced ninety-seven regime transitions, of which forty-four transpired in Latin America.⁷

As World War II came to a close, a springtime blossomed for democracy and the left in Latin America. Partly inspired by the victories of the Allies, elections and popular mobilization proliferated, frequently spearheaded by urban labor. In the mid-1940s, democracy—and in some cases social reform, often captured by populists—surged in many countries: Guatemala with the election of Juan José Arévalo in 1944, Argentina with the first election of Juan Perón in 1945, Brazil with the replacement of Getúlio Vargas by a democratic regime in 1945, Venezuela with the three-year government of Democratic Action from 1945 to 1948, Peru with the equally brief stint in office in the same years of the American Popular Revolutionary Alliance (APRA), Chile with the electoral win of Radical Gabriel González Videla and his Communist allies in 1946, Costa Rica with the triumph of the democratic forces in a civil war in 1948, and Ecuador with a rare democratic cycle from 1948 to 1961.

However, the Cold War—led by the United States and its conservative allies in the hemisphere—quickly snuffed out this progressive moment. The élites either constricted or closed most of the democratic and leftist openings before the end of the decade. Governments shifted to the right and repressed the left and labor, as well as many democrats. In the most violent reversals, the military captured the presidential palace in El Salvador, Peru, and Venezuela in 1948, Bolivia in 1951, Colombia in 1953, and Paraguay and Guatemala in 1954.⁸

The twilight of the tyrants in the 1950s proved equally transitory, although a majority of the countries qualified as democracies by 1960. The exits of the armed forces in Ecuador in 1948; the oligarchic Rosca in Bolivia in 1952; the increasingly authoritarian Perón in Argentina in 1955; the despots Anastasio Somoza in Nicaragua; Manuel Odría in Peru in 1956; Fulgencio Batista in Cuba in 1958 did not usher in lasting democracies, although the departures of dictators Gustavo Rojas Pinilla in Colombia and Marcos Pérez Jiménez in Venezuela in 1957 to 1958 did. The United States did not normally promote this outbreak of democratization, instead more often siding with the authoritarian forces.⁹

During his guerrilla insurgency in the 1950s, Fidel Castro vowed to restore the liberal democratic principles embedded in the Cuban Constitution of 1940. Once in office, he dismissed bourgeois democracy in favor of socialist democracy, or, simply put, communism. His triumph radicalized the Latin American left and turned many from a democratic to a violent struggle, just as Castro himself had found the electoral route blocked and so took up arms. His takeover, turn to the left, drastic economic and social reforms, and alignment with the Soviet Union fueled a sense of crisis among United States and Latin American policymakers in the 1960s. For those leaders, avoidance of revolution by promising social reforms temporarily replaced democracy as the premier issue. To prevent revolution by more forceful means, many dictators soon replaced democrats.¹⁰

From the 1960s to the 1970s, the United States rhetorically committed the Alliance for Progress to democracy and social reform. Initially, democracy registered a few gains with the elections of reformers like Fernando Belaúnde in Peru (1963) and Eduardo Frei in Chile (1964). However, conservative, anti-communist military coups succeeded in El Salvador and Ecuador in 1961, in Argentina and Peru in 1962, and in Guatemala, Ecuador, the Dominican Republic, and Honduras in 1963, usually with support from the United States.

As Washington came to prefer dictatorship to democracy as an antidote to revolution, tyrants gradually took back the rest of the region, often with U.S. backing. This march of the despots began with the leader Brazil and Bolivia in 1964, followed by Argentina in 1966, Peru and Panama in 1968, Ecuador and Honduras in 1972, and Uruguay and Chile in 1973, capped off by Argentina again in 1976. Only the democracies in Costa Rica, the Dominican Republic, Venezuela, and Colombia (although it adopted a civilian form of fairly restrictive rule) bucked the tyrannical trend.

Meanwhile long-standing dictatorships in Central America, the Caribbean, and Paraguay persisted, as did the one-party state in Mexico. International

friends of Latin American democracy expressed the most dismay at the fall of some of its greatest showcases, especially Chile and Uruguay, and the ferocity of the new dictatorships, especially in the Southern Cone and Central America. For many observers, the 1930s to the 1970s rise of popular democracy effectively ended in the Chilean military coup against Allende, a devastating defeat for democracy as well as socialism.¹¹

At least in Brazil, Uruguay, Chile, and Argentina, the overwhelming evidence from elections, polls, and even public mobilizations showed that polarization and support for authoritarianism among ordinary people remained far too low to account for the breakdown of democracy. Rather than the majority of citizens, economic, political and military élites, once again deserted and scrapped these democratic regimes. They exaggerated public turmoil and demands for an end to democracy in order to serve their own interests, as they had been doing since independence.¹²

These chronological trends responded to both external and internal currents. Some foreign factors, like the New Deal's domestic reforms, World War II's defeat of fascism, and the Roman Catholic Church's reorientation toward social justice and democracy in the 1960s, pulled in a democratic direction. Meanwhile, other international influences, like the Great Depression, the Cold War, and the Cuban Revolution, tugged toward authoritarianism.

Domestic transformations within Latin America also exerted contradictory pressures. Rising population, literacy, and urbanization brought more people into the political arena. Per capita income improved, as did industrialization. The growth of the middle class, university students, organized labor, and peasant unrest expanded political participation beneath the upper class. Means of communication, such as radio and television, spread beyond the élites to the unschooled, and the media became more sophisticated and independent.

Although some socioeconomic conditions for democracy improved, impediments remained. Monocultural reliance on the international economy and on revenues from the state coffers perpetuated the élites and left governments at the mercy of global economic cycles. Foreign investment still strengthened the ruling class and, in many cases, dictators. Widespread poverty and illiteracy kept millions from becoming true citizens, as did rigid social stratification, often rooted in racial, ethnic, and class discrimination. As it had for centuries, the inequitable system of land tenure blocked democratic participation by many rural workers, who still comprised a majority of the population of Latin America in the 1950s.¹³

Some U.S. authors still stooped to ethnocentric explanations for Latin American political behavior. As an example, one historian blamed political instability on "the mercurial temper of Latins" and urged upon them

"a measure of self-discipline which they do not possess."¹⁴ Racism colored some writers' views of the political landscape and the prospects for democracy. One U.S. scholar opined that Argentina should be a natural home for democracy because, "It is peopled by a predominantly white race. It is free from the deadweight of a heavy Indian population, the too-mercurial influence of the Negro, and the disturbing leaven of mixed peoples. . . ." This analyst also attributed Uruguay's democratic success partly to its "superior racial stock." These comments seemed particularly odd since Argentina and Uruguay exhibited similar ethnic compositions yet opposite predilections toward dictatorship or democracy in the era.¹⁵

Three major social science theories tried to explain the presence or absence of democracy in Latin America: modernization, dependency (and its bureaucratic authoritarianism variant), and corporatism (especially its cultural version). To oversimplify, modernization theory postulated that as underdeveloped countries became more capitalist, industrial, urban, and middle class, they should replicate the values and habits of the United States and Western Europe before them, thus becoming more democratic. To the contrary, dependency theory argued that so long as the Third World remained a subordinate part of the global capitalist system, it would likely stay mired in authoritarianism as a way to perpetuate the inferior position of those countries and their exploited classes. When the more advanced as well as impoverished nations of Latin America knuckled under to new dictatorships, the theory of bureaucratic authoritarianism contended that modernization had a propensity to lead to oppression, not democracy. In the more developed countries, the ruling élites and their foreign supporters suppressed demands from emerging social groups in order to maintain economic accumulation and growth.

Although modernization and dependency theories bordered on economic determinism, one brand of corporatism smacked of cultural determinism. It insisted that patrimonial attitudes and practices inherited from the Iberian and colonial past predisposed Latin America toward autocracies. All these theories contributed some important insights, but they proved too grandiose to account for regime changes among countries and over time. By the late 1970s, they all fell into disrepute.¹⁶

From the 1930s to the 1970s, several types of regimes arose in Latin America. Among dictatorships, only one constituted all-out totalitarianism (Cuba under Castro). At various times, the others comprised personal sultanistic despotisms (Nicaragua, Haiti, Paraguay), traditional exclusionary military dictatorships (Guatemala, Honduras, El Salvador, Panama, Cuba under Fulgencio Batista, Bolivia), reformist inclusionary military dictatorships

(Ecuador, Peru, Bolivia), noncompetitive civilian authoritarianisms (Mexico and the mixed case of Colombia), and exclusionary bureaucratic authoritarian systems (Chile, Uruguay, Argentina, Brazil). The closest to competitive, civilian democratic regimes existed from time to time in Guatemala, Costa Rica, Panama, the Dominican Republic, Venezuela, Colombia, Ecuador, Peru, Bolivia, Chile, Argentina, Uruguay, and Brazil. In terms of participation and policies for the masses, the inclusionary dictatorships exhibited some features in common with popular democracies, the exclusionary dictatorships with protected democracies.¹⁷

Beginning in 1945, political scientist Russell H. Fitzgibbon conducted opinion surveys every five years, asking U.S. experts to rate the state of democracy in Latin America. From the 1940s to the 1960s, the overall rating for the region improved slightly. In general, the country rankings changed very little. As they probably would have in many past decades, Costa Rica, Chile, and Uruguay always held the top three spots. Paraguay, the Dominican Republic, Haiti, Bolivia, Nicaragua, and Honduras consistently finished closest to the bottom. Although fairly accurate at the high and low ends, these Latin Americanist scholars' categorizations were less reliable for the countries between the top and the bottom, where the biggest change was the plunge by Cuba under Batista and Castro.¹⁸

Concepts of Popular Democracy

Latin American intellectuals and politicians increasingly spoke out in favor of sweeping social reform, but they divided over democratic or revolutionary methods. Some espoused ideas at odds with liberal democracy. Both the right and the left put classic democrats on the defensive, either for having done too much or too little for the poor. On the right, a few political thinkers favored traditional or corporatist authoritarianism, even imbibing fascist concepts from Europe. Partly in response to leftwing radicalism, some conservatives in the 1960s and 1970s argued for highly protected democracy or even dictatorship to safeguard capitalism, social stability, and political order. On the left, more Marxists, communists, and some dependency theorists came to prefer revolutionary dictatorships over popular democracies.¹⁹

Three schools of thought supported democracy and social reform, but sometimes opted for authoritarian models to achieve social justice. First, the Roman Catholic Church officially converted to democracy and social reform. Among Catholics, the Christian Democrats favored Western democracy. Some liberation theologians became more radical and even

embraced revolution rather than representative democracy as the path to social redemption.²⁰

The second train of thought backing democracy and social reform but sometimes justifying inclusionary authoritarianism was populism. Victor Raúl Haya de la Torre, leader of the American Popular Revolutionary Alliance (APRA) in Peru, stood out as the most famous intellectual advocate. Like Perón, he waxed more enthusiastic about identifying with and uplifting the common people than defending electoral democracy.²¹

The third intellectual construct that promoted social justice through democratic or dictatorial means was socialism. Especially after the Cuban Revolution, more socialist thinkers advocated armed insurrection over democratic means, although most Chilean socialists preferred the democratic path. Going far beyond popular caudillos in the nineteenth century, Castro redefined democracy in revolutionary and socioeconomic terms. In 1960, he propounded one of the most radical definitions of popular democracy by any leader of a country in Latin American history:

"This is democracy, where you, farmer, are given the land that we have recovered from usurious foreign hands . . . This is democracy, where you, worker, are guaranteed the right to work . . . where you, students, have the opportunity to win a university degree . . . where you, old man, have your sustenance guaranteed . . . where you, Cuban Negro, have the right to work . . . where the women acquire rights equal to those of all other citizens . . . Democracy is *this*, that which gives a gun to the farmers, gives a gun to the workers, gives a gun to the students, gives a gun to the women, gives a gun to the Negroes, gives a gun to the poor, and gives a gun to any other citizen who is willing to defend a just cause."²²

The Impact of Popular Democracy on Political Institutions

SOCIALISTIC AND NATIONALISTIC CONSTITUTIONS

The basic content of constitutions, like that of other political institutions, changed little from the 1930s to the 1960s. At the same time, Latin Americans more frequently obeyed their constitutions. In contrast with the oligarchic era, this became another period of multiplying and unstable constitutions. In large part, their proliferation reflected attempts to take into account the rise of popular democracy and government responsibilities for national socioeconomic development.

From independence through the 1950s, the twenty Latin American republics adopted over 180 constitutions, for an average above nine apiece. The Dominican Republic led with twenty-nine, while latecomer Panama

trailed with only three. Of the original republics forged early in the nineteenth century, the other top scorers included Venezuela with twenty-four, Haiti with twenty, and Ecuador with seventeen. By the end of the 1950s, Paraguay and Uruguay recorded the fewest constitutions at four each, the first country stable because it had been so dictatorial and the second because it had been so democratic. From the 1930s through the 1960s, Latin America generated nearly sixty constitutions. Per usual, the Dominican Republic (seven constitutions), Haiti (six), and Venezuela (six) set the pace.

Argentina still boasted the longest-lasting constitution (from 1853, preceded by only three other documents), although briefly replaced by Perón's constitution from 1949 to 1957. After ten previous charters, the Colombian constitution of 1886 also proved very durable, even though significantly amended in 1936, 1945, and 1968.²³

Most Latin American constitutions still closely followed the U.S. blueprint. Nevertheless, they were usually longer and more detailed, not unlike state constitutions in the United States. A composite Latin American constitution for the 1950s would have run about 35 pages, or roughly three times the length of the U.S. document. One purpose of including greater specificity was to try to get Latin American governments to really follow what the constitutions intended rather than using broad-brush provisions, as in the U.S. charter. Another reason for the verbosity was the attempt to secure new social and economic rights through their exhaustive listing.²⁴

These socioeconomic pledges illustrated the long-standing Latin American association of democracy with social justice, not just proper government procedures. From 1932 to 1960, all the Latin American countries except Mexico (which had started the trend in 1917), Chile (which had partially followed suit in 1925), and Haiti (which officially clung to 19th-century individualism) introduced constitutional sections on social rights. These guarantees were at least as advanced as similar provisions in the United States and Europe, although the Latin Americans mainly enforced them only in the urban areas. These reforms made the central governments and presidents more interventionist. New constitutions usually emphasized state responsibilities for labor, family, education, and, increasingly, economic welfare, development, and nationalism. The newest trend in group social rights addressed those for rural and indigenous peoples.²⁵

Examples of this social constitutionalism included Peru's 1933 constitution adopting some nationalist and socialist ideas from the 1917 Mexican charter, such as government ownership of mineral rights and collective bargaining for workers.²⁶ The 1934 Uruguayan charter also guaranteed significant economic and social rights, particularly for trade unions and children.²⁷

The 1936 constitutional reform in Colombia echoed many of its contemporaries by allowing for regulation or even expropriation of private property in the "public or social interest . . . for the purpose of rationalizing the production, distribution and consumption of riches, or of giving the worker just protection. . . ."²⁸ Argentines added sections on social and labor rights to their constitution under Perón in 1949, and again when they restored the 1853 document in 1957.²⁹

Following World War II, some constitutions also introduced novelties in common with Europe. They absorbed international laws such as the Declaration of Human Rights, added economic rules and regulations, endorsed proportional representation, and inserted anti-fascist and, especially, anti-communist prohibitions against totalitarian or anti-democratic parties. They also expressed nationalism and anti-imperialism, including restrictions on economic rights for foreigners and extensions of territorial sovereignty to include the subsoil, sea, and air.³⁰

The most significant and successful democratizing constitution in this period was Costa Rica's of 1949, following a rash of early documents and then two very stable charters in 1871 and 1917. In the wake of the civil war of 1948, the new constitution established the institutions for a vibrant and durable democracy. It set up an interventionist welfare state guaranteeing broad political as well as socioeconomic rights to its citizens. Although most of the provisions adhered to standard Latin American fare, it maintained a centralist system but with municipal elections, pruned the president's powers, buttressed congress, gave women the vote, and founded an exemplary electoral tribunal. Most momentous for democracy, the constitution abolished the armed forces.³¹

CENTRALISM FOR DEVELOPMENT

Leaders saw centralism as necessary to promote nationalism, national integration, and national development. They wanted to knit closer ties between the state and the subordinate classes. Throughout Latin America, central governments assumed vast new economic and social functions, not unlike New Deal liberalism in the United States. Rather than being oppressive, centralism sometimes furthered democratization. The overwhelming majority of constitutions retained or even bolstered unitary systems. Even the four federalist countries exhibited centralizing tendencies.³²

As the cities snowballed in size, municipal government gained elected representation. By the mid-1950s, seventeen of the countries elected their town councils, and nine their mayors. Still, those officials languished in the shadow of the central or even provincial authorities. As the central government

accumulated more power to lead national development, it actually stripped many municipalities of their previous functions. By the 1970s, municipal government barely survived, with little purpose or resources.³³

POPULIST PRESIDENTS

Presidentialism intensified in order to lead national development and mass movements, although most of the fundamental, legal structure of that office stayed the same. Sometimes posing as champions of the common people, presidents clashed with other branches of government and with conservative social actors. Chief executives tried to move their nations forward with formidable powers over other institutions but with tenuous influence over socioeconomic forces, the military, U.S. interests, and their own security.³⁴

From 1940 to 1976, Latin American presidents lasted in office less time on average than their foreign counterparts, even in other underdeveloped countries. They also exhibited a high percentage of unconstitutional transfers of power. Peru provided one extremely unstable case, hosting ninety-five presidents from 1821 until 1969, for an average of about one every year and a half.

Compared with the average in North Atlantic democracies, Latin American chief executives took power with much less ministerial experience. This occurred partly because presidents tended to be personalistic outsiders with thin party ties, making them less attuned to building coalitions, cooperating with congress, and relying on political parties to keep them in office. Another reason was that some countries prohibited recent high government officials from immediate election to the presidency.³⁵

In the middle of the 1950s, all the Latin American constitutions insisted that presidents be native-born citizens who had resided in the country for a while prior to their election, partly so that recent exiles could not compete. Age requirements tended to be younger than in the United States, with one country (Nicaragua) requiring presidents to be at least twenty-five years of age, seven countries requiring presidents to be at least thirty years of age, nine requiring presidents to be at least thirty-five years of age, and only two countries requiring presidents to be at least forty years of age. Although vague, the Dominican constitution of 1947 indicated that the president only had to be eighteen or older. Some countries included economic, occupational, and educational stipulations. For example, Colombian presidents had to be citizens by birth, at least thirty years old, earning a minimum income of almost U.S. \$1,000, and experienced in a previous high public post (or a university professor or a professional with a university degree, particularly wise qualifications).

Six countries barred presidents who had been on active duty in the armed forces for six months or a year previously. Eight outlawed the election of a priest, while Argentina and Paraguay demanded that the chief executive subscribe to Roman Catholicism. By the mid-1950s, Latin American presidents could serve one legal term from four to six years.

Presidents increasingly claimed popular mandates. By the mid-1940s, all the countries save three (Cuba, Haiti, and Argentina until 1949) directly elected their presidents. Most constitutions empowered the congress to select the president from among the top vote-getters in the absence of a majority winner. The Costa Rican Constitution of 1949 required a runoff if no candidate received 40 percent of the popular votes. Presidential elections commonly did not coincide with congressional contests, thus exacerbating relations between the executive and the legislature.³⁶

The typical constitution contained a contradictory tendency to invest the presidency with enormous powers while also trying to hem it in with restrictions. Peru's 1933 constitution exemplified the glorification of an awe-inspiring president by proclaiming that officeholder "personifies the nation."³⁷ Colombia's President Alberto Lleras Camargo (1958–1962) quipped that a president had to be "a magician, prophet, redeemer, savior, and pacifier who can transform a ruined republic into a prosperous one, can make the prices of the things we export rise and the value of the things we consume drop."³⁸ He bemoaned the fact that, "Everything of importance for the citizenry, both in the way of fundamental norms and in social and economic matters has almost without exception been the product of extraordinary faculties authorized by the Congress to the executive or of decrees under the state of siege."³⁹

Presidents generally possessed vast, autonomous appointment powers, since most countries still lacked effective civil service regulations. In no country did presidential cabinet appointments require legislative approval, although some constitutions allowed congress to interpellate them and even force them to resign. All the constitutions made the president the head of the armed forces, at least on paper. However, in many cases, the appointment of high officers by the president required congressional concurrence.⁴⁰

Presidents still cowed the legislature. They seldom needed to use their item veto. The executive originated most bills, and that legislation usually sailed through congress unscathed. Even rarer than a veto was its override. Most presidents could issue laws—as well as their implementing regulations and instructions—by decree, particularly when congress was not in session, which was frequent. Most presidents also had the right to spend in excess of the budget approved by congress, especially in times of so-called emergencies.

The greatest extraordinary power was to govern during states of exception or siege.⁴¹

Even during the collaborative National Front, the Colombian president ruled by decree under a state of siege or emergency most of the time. From the 1950s to the 1980s, the bi-partisan coalition governments of the Front reigned, officially from 1958 to 1974 but unofficially and partially until 1990. Cooperation between the executive and legislative branches should have been high, but the factionalized parties in congress exasperated the president. He could impose states of exception so long as all the cabinet ministers agreed. However, congress did set some limits, most importantly that decrees did not retain force after the special state expired unless approved by the legislators.⁴²

The constitutions placed Latin American presidents in an awkward position vis-à-vis the military. Normally the law forbade the armed forces to disobey civilian authorities or to deliberate on politics but authorized them to defend the constitution and order. On the main thrust of trying to exert civilian control over the military, the Nicaraguan charter of 1939 said that, "The army is a non-political institution. Its members in active service may not vote or exercise political activities of any kind."⁴³ In a further attempt to shield the legislature from military takeovers, the 1933 Peruvian constitution proclaimed that the armed services could not "encroach" on the congress and that the president had to provide whatever defensive force it requested.⁴⁴ The Bolivian constitution of 1938 warned that any armed group who tried to govern was guilty of sedition.⁴⁵

The most radical and successful provision appeared in the Costa Rican constitution of 1949:

The army as a permanent institution is proscribed. For vigilance and the preservation of the public order there will be the necessary police forces. Only through continental agreement or for the national defense may military forces be organized; in either case they shall always be subordinate to the civil power; they may not deliberate or make manifestations or declarations in individual or collective form.⁴⁶

In most countries, constitutional attempts to thwart military intervention had little discernible impact, at least in the short run. From 1920 to 1960, the Latin American armed forces still staged seventy-eight successful coups d'état. The most frequent per country were nine (in Bolivia and Ecuador), seven (in Argentina and Paraguay), and six (in El Salvador and Guatemala). Only one each took place in Costa Rica, because it was so democratic, and Nicaragua, because it was so authoritarian.⁴⁷ Some scholars underestimated

the continuing threat from the armed forces in seemingly consolidated democracies. Even after the election of Socialist Allende in 1970, a standard text on Latin American politics in 1971 noted that, "The army does not need to be considered as a separate power element in the political landscape of Chile, which is one of a small handful of Latin American states where military impact on politics is at ebb."⁴⁸

Since most militaries continued to intrude in politics, the Latin Americans retained other provisions for dealing with that eventuality. The rights to asylum and the tradition of sending ousted opponents into exile, along with the reluctance to prosecute departing dictatorships for human rights violations, may have made coups more likely. At the same time, they may have made unconstitutional takeovers less bloody and less durable. Perhaps these practices increased the tyrant's willingness to tolerate his opponents and to step down under favorable conditions. These protections for the politically defeated were also quite rational in systems with low numbers of trained public officials, with frequent unscheduled and violent changes of government, and with today's victors often becoming tomorrow's vanquished.⁴⁹

From 1932 to 1973, Chile provided a rare example of a multiparty presidential system with great stability. The president exercised the line-item veto and broad appointive powers, although the senate had to concur in many cases. Traditionally, the dominant executive mainly concentrated on broad national issues, the subordinate legislature on particularistic local questions, although both shaped national policies. The two branches feuded frequently, based on separate powers, elections, party compositions, ideologies, and agendas. From the 1950s onward, congressional elections shifted away from mainly pork barrel concerns to echo the national, ideological issues of presidential campaigns. Therefore compromise between the legislature and the executive became increasingly difficult. Meanwhile presidential power gradually expanded to provide leadership for national development. Those attributes peaked in the constitutional reform of 1969, put through by rightist and centrist politicians who never expected Allende to win the 1970 election.⁵⁰

Even more than in Chile, Colombia supported a robust president looming over a congress dedicated principally to localistic, clientelistic services but also engaged in national policy debates. Although not quite as grandiose as in many other Latin American countries, the president's considerable power rested mainly on his ability to make most high-level appointments (including ministers, governors, and rectors) with no interference from congress, to staff most of the bureaucracy, and to command the armed forces. He also initiated most significant legislation, shaped laws through implementation,

exercised the item veto, issued decrees, and ruled under states of exception. Increasingly, the executive presided over economic policies and agencies to boost national development, often in consultation with technocrats more than legislators.⁵¹

Even intensely democratic Uruguay bowed to the trend toward more activist presidents. In the aftermath of the Great Depression, an elected constitutional convention designed a new constitution, approved in a plebiscite in 1934. Eliminating the weak, cumbersome, conflictual, and controversial National Council of Administration, it restored a preeminent presidency.

In a brief reversal, Uruguay's 1952 constitution recreated a debilitated collegial executive confronting a muscular congress. Popular vote would elect the members of the National Council of Government for four years, with no immediate reelection permitted. The constitution guaranteed the runner-up party three of the nine seats. The top vote-getting representatives from the majority party would rotate the presidency of the council every year. Unlike the earlier hybrid system, now the Council would rule without a separate directly elected president. However, the unwieldy institution did not function smoothly.

In 1966, Uruguayan voters reinstated the previous presidential system in hopes that a dynamic chief executive could cope with economic problems. Those constitutional reforms created a powerful five-year presidency, with no immediate reelection. The officeholder also could not leave the national territory for more than forty-eight hours without senate approval. The president enjoyed full control over his cabinet, although its members could be interrogated by the congress.

For a brief moment, the balance of power between the Uruguayan executive and the legislature may have been the most even in Latin America. However, the 1966 reforms also enhanced the president's authority to rule under emergency laws. He deployed those abilities to subjugate the congress and pave the way to the military takeover with him in 1973.⁵²

The most important legal constraint on Latin American presidents remained the prohibition against reelection. In the mid-1950s, all the constitutions banned immediate reelection except those of the Dominican Republic and Paraguay, both ruled by long-standing dictators. The Costa Rican constitution of 1949 required two terms between the election of the same person as president, as did the Venezuelan constitution of 1961 and the Cuban constitution of 1940.⁵³

Some constitutions went to greater lengths to stymie *continuidismo*. For example, the El Salvadoran and Guatemalan constitutions called for popular rebellion and intervention by the armed forces if any president violated the

rule of alternation. After the ouster of the dictatorship of Jorge Ubico (1931 to 1944), the Guatemalan constitution of 1945 barred from the presidency clergy, active military, previous coup or insurrection leaders and their close relatives, previous high officials of *de facto* governments and their close relatives, and anyone who proposed or tried to interfere with the principle of alternation in the presidency, which was a six-year term, renewable only after a twelve-year interlude. The constitution also said that one of the fundamental duties of the apolitical, non-deliberative army was to defend alternation in the presidency, as well as fair elections, democracy, and the constitution. The Guatemalan and Costa Rican constitutions labeled any attempt at continuation as treason. In the same spirit, several constitutions also proscribed immediate presidential election for relatives or high public officials close to the president, so as to block indirect continuation.⁵⁴

The Bolivian constitution of 1945 also went farther than most by establishing that not only presidents but also their vice presidents could not be elected president until after an intervening six-year term. Bolivia also banned from election to the presidency sitting cabinet ministers, members of the armed forces, clergy, close relatives, and contractors with the government. The president had to be elected by a popular majority or chosen by congress from among the top three vote-getters.⁵⁵

In its 1946 constitution, Ecuador blocked the president and vice-president from becoming president or vice-president until four years after their four-year term. It also prohibited close relatives of presidents from succeeding them immediately. Rules against close relatives becoming president were common in smaller countries as in Central America. Some Latin American constitutions also excluded close relatives of the president from other public positions, such as congress. They also commonly imposed anti-corruption strictures, for example preventing congressional representatives from having dealings with state agencies.⁵⁶

Some dictatorial presidents, including Rafael Trujillo in the Dominican Republic, Anastasio Somoza in Nicaragua, and Juan Vicente Gómez in Venezuela, found their way around these no-reelection restrictions. They ruled from behind the scenes, handpicked successors to govern in brief interim regimes, resorted to the courts, congress, or a phony plebiscite to extend their term, or amended, rewrote, suspended, or abolished the constitution. Although obviously violating the spirit of the constitution, it is telling that these continuist presidents often felt obliged to go through some legalistic conjuring to perpetuate themselves in office rather than just using brute force.⁵⁷

Another common legal restriction on presidents involved travel so that the legislature could monitor their behavior. Along with many others, the

Ecuadorian constitution of 1946 prohibited their presidents from leaving the country during their tenure or for one year thereafter without congressional approval. Going abroad without such consent would forfeit their office. Presidents also could not exit the national capital for more than thirty consecutive days even within the country, though during those days they could continue to rule from anywhere in the national territory.⁵⁸

Constitution writers also invented other provisions, often futile, to tether the chief executive. Some constitutions allocated additional powers to the cabinet, congress, or courts. Some relied on the Comptroller General, a new officer who ruled on the correctness of all budgetary outlays. Others introduced regulations on government administration and finances to try to curb arbitrariness and corruption.⁵⁹

Other legal strategists sought to restrict the president's enormous powers to suspend constitutional guarantees during states of exception and siege. They required limits and congressional authorizations, beforehand if in session and afterward if not. Some lawmakers mandated signatures of cabinet officers for presidential acts above and beyond normal constitutional provisions, but ministers appointed freely by the president were unlikely to obstruct his wishes. Going even farther, the Bolivian constitution of 1938 declared, in vain, that "Neither the Congress nor any gathering of the people may grant to the chief executive extraordinary powers, the sum total of public authority, nor any power that will place the lives, the honor, and the property of Bolivians at the mercy of the government, or of any person."⁶⁰

In an extreme case of attempts to handcuff the chief executive, the Ecuadorian constitution of 1946 invested congress with the right to remove the president for "permanent physical or mental incapacity," later employed against Abdalá Bucaram in 1997. Illustrating some of the problems with presidents, the constitution placed limits on their extraordinary powers during emergencies. It also expressly forbade them to violate the constitution and laws, to inhibit or dissolve congress, to interfere with the judiciary, to meddle in elections, or to govern from outside the country.⁶¹

Typically in the twentieth century, Latin American constitutions guaranteed their citizens crucial and detailed individual rights against oppression by the executive branch. These normally included property rights, equal protection of the law and due process, safeguards against government abuses of criminal or political laws, rights of amparo and/or habeas corpus, freedom of speech and writing (although with tricky clauses against slandering certain persons or disturbing social order), freedom of travel, freedom of religion (although some still embraced Roman Catholicism as the official faith), freedom of assembly and association, freedom to petition, the right

to join political parties, the right not to be discriminated against on the grounds of race or religion, and the right of asylum. Constitutions also usually outlawed the death penalty. Although governments often transgressed basic civil liberties, they also increasingly respected them.⁶²

Overall and over time, the Costa Rican constitution of 1949 established the weakest presidency in Latin America. It counterbalanced presidentialism with significant capacities for the unicameral legislature (notably the ability to censure ministers and investigate the executive branch, but without the right to immediate reelection), for the supreme court, and for other governing bodies. It deprived the president of a veto over the national budget, any ability to legislate by decree, emergency authority without the support of two-thirds of the congress, and reelection.⁶³

Despite the monumental formal and informal powers of presidents, most were elected by a minority and held a minority of the seats in the legislature. Growing congressional oversight sometimes curtailed their authority. Pacts between the government and opposition constrained chief executives in some countries, principally Venezuela, Colombia, and Uruguay. At the same time, presidents faced threatening militaries. And even sincere democrats often expressed frustration at the challenges of national development, infrastructural deficiencies, small budgets, recalcitrant citizens and regions, disloyal élites and other opponents, unruly social movements, ideological foes, guerrilla bands, foreign meddlers, and other international and economic forces beyond their control.⁶⁴

CONSERVATIVE CONGRESSES

In the mid-1950s, fourteen of the legislatures were bicameral—with senators and deputies—and six (Guatemala, Honduras, El Salvador, Costa Rica, Panama, and Paraguay) were unicameral. The criteria for legislators were similar to those for presidents, especially for senators, but not so stringent, especially for deputies. Qualifications for election to congress always required a minimum age, usually at least thirty years old for the senate and twenty-one for the lower house, and citizenship, normally native born. Other requirements varied, including no felony convictions but some prior professional or government experience in Colombia, military service in Bolivia, and an income threshold in Argentina.⁶⁵

In the mid-1950s, voters directly elected most senators and deputies, although provincial assemblies selected senators in Argentina and Venezuela. In many countries, the distribution of seats still disproportionately favored the rural and conservative populations. Senators were typically elected by geographic district, much as in the United States, except for the functional

senators in Ecuador, the senators who were ex-presidents and the runner-up in the previous presidential election in Nicaragua, and all the senators being elected at-large in Nicaragua and Uruguay. Senatorial terms ranged from four to eight years. Only Mexico and Costa Rica outlawed immediate reelection.

In most countries, voters elected deputies by population numbers (for example, one for every 50,000 inhabitants in a district) except that all were elected at-large in Nicaragua and Uruguay. Typically deputies were elected by proportional representation, adopted in twelve more countries in this period. Their terms varied from two to six years, usually longer than in the United States. Only Mexico, Costa Rica, and Guatemala disallowed immediate reelection. Most Latin American constitutions did not limit the reelection of congresspersons in hopes that they would accumulate leverage vis-à-vis the overbearing presidents.⁶⁶

In these years, most scholars did not study Latin American legislatures. They criticized congresses that appeared to be conservative, élitist, puerile debating societies, either delaying or rubberstamping legislation, in countries needing vigorous presidential leadership for rapid national development. Looking for responsible decision-making congresses, researchers usually only highlighted Chile, Colombia, Uruguay, and Costa Rica, although they sometimes gave a nod to Venezuela, Brazil, and Peru.

Nevertheless, when political scientists took other functions into account—such as legitimization, criticism, recruitment, and socialization—they gave the Latin American legislatures slightly higher marks. And if they compared those congresses not with the leviathan in the United States but rather with their counterparts in Africa, Asia, and even Europe, they saw them as less pathetic. Analysts agreed that the most vigorous Latin American legislatures boasted a long tradition of relative autonomy and influence, lengthy legislative careers, adequate committee and staff structures, and healthy political parties capable of opposing the president.⁶⁷

Although a few legislatures possessed positive features, most remained even weaker in reality than in the constitutions. They customarily only met for about four months per year, even then for only a few hours per day. In addition, they possessed tiny budgets and staffs. Members of congress were typically expected to donate a portion of their already small salaries to their political parties. Their work was undermined further by the opposition's practice of boycotting sessions. Worse, dictators usually closed the congress altogether, although some made partial exceptions, for example the first Carlos Ibanez government in Chile (1927–1931) and the military in Brazil (1964–1985). Authoritarian Mexico maintained one of the most

slavish congresses, whose chamber of deputies from 1935 to 1964 approved unanimously per year between 59 percent and 100 percent of presidential projects.⁶⁸

After World War II, constitutional changes aimed to strike a better balance between the legislative and executive branches. Reforms extended the length of legislative sessions and prohibited more former government officials from becoming congresspersons. In addition, some constitutions transferred a few powers—such as convoking an extraordinary session of congress—from the president to the legislators. Most legislatures possessed impeachment procedures, but they virtually never used them against a president until the 1990s.⁶⁹

Although overpowered by the chief executives, congresses squabbled with them frequently. This friction sometimes triggered military coups, which usually cashiered both the president and the legislators. Only rarely did freely elected presidents enjoy the luxury of single-party majorities in both houses of congress. From 1900 to 1990, this combination only occurred in Uruguay (for twenty years), Venezuela (for thirteen years), Argentina (for ten years, mainly during the second and third Perónist presidencies), Costa Rica and Peru (for nine years), Colombia (for seven years, mainly in the 1940s), and the Dominican Republic (for four years). Most of the time, parties were too fragile or fragmented to guarantee a majority for their presidents.⁷⁰

Peru, Argentina, and Brazil hosted fairly weak congresses. In the rather typical case of Peru, the 1933 constitution barred from congressional office members of the clergy and the armed forces. Voters directly elected both the senators (native-born and at least thirty-five years of age) and the deputies (native-born and at least twenty-five years of age). They elected them at the same time and length (six years) as president via proportional representation, and they could reelect them indefinitely. However, from the 1920s to the 1960s, turnover in congressional membership from one election to the next reached nearly 90 percent among deputies and nearly 70 percent among senators.

Although not powerful by U.S. standards, the Peruvian congress influenced the budget and presidential appointees more than some of its Latin American counterparts. It also fueled political instability and numerous military takeovers through its quarrels with the executive branch. From the 1930s to the 1960s, congress was undercut by the frequent military interventions and the equally frequent banishment of the largest political party, the populist American Popular Revolutionary Alliance.⁷¹

Argentina filled its nine-year senate terms with two people from each province and the Federal District. They were elected by plurality vote of the

provincial legislatures except for the ones from the Federal District, who were chosen by popular vote. In 1949, the populist Perón established the direct election of senators, but his successors reinstated the indirect system. Both senators and deputies could be elected over and over.

Voters directly elected the deputies to four-year terms. In 1962, a new electoral law switched from the Sáenz Peña system of giving the first-place party two-thirds of the district's deputies and the second-place one-third to a d'Hondt system of proportional representation. The lawmakers intended this change to allow the Peronists to participate in congressional elections but give them little chance to win control because many minority interests would capture seats. Political parties determined who the congressional candidates were and how they would be listed on the ballot. Consequently, during 1958 to 1966, legislators normally followed dictates from their parties, not their constituents.

Under more authoritarian presidents, the stature of Argentina's congress declined from the oligarchic republic to the mid-twentieth century. It did not enjoy full interpellation rights with cabinet ministers. It could question but not remove them. The legislators rarely initiated or made major public policies. Instead, they at most criticized and modified legislation introduced by the executive branch. Congress at least trained the several presidents who served there. Despite the legislature's debilities, a poll in Buenos Aires province in 1963 found 78 percent of respondents saying they thought congress was important to moving the nation forward, a figure below that for universities but well above that for labor unions, political parties, or the military.⁷²

Ever since independence, Brazil had always had a puny legislature. During his authoritarian period from 1930 to 1945, President Getúlio Vargas effectively eliminated the congress, even though it met briefly during 1934 to 1937. In the democracy from 1945 to 1964, lawmakers installed proportional representation for the lower house of congress and for state and municipal legislatures.

In Brazil's democracy, voters directly elected presidents and deputies for four years at the same time. They selected congressional representatives statewide in multi-member districts. Voters chose a party and a candidate within that party. Seats were awarded by the state's electoral quotient, the number of registered voters divided by the number of representatives. This system encouraged smaller parties to form electoral alliances to maximize their total vote and thus their number of quotients and seats. Each state also elected three senators for eight-year terms.

Both houses of Brazil's congress overrepresented states with smaller populations, giving rural and conservative groups exceptional weight. This bias

set up intrinsic adversity between a congress more representative of the traditional agrarian areas and a chief executive more representative of the progressive urban concentrations. This dichotomy exacerbated the standoff that led to the fall of populist President João Goulart in 1964.

The legislature functioned in the shadow of the president. The frailty of the party system further sapped congress. Nevertheless, the Brazilian assembly wielded some powers. During 1961 to 1963, a semi-parliamentary system designed to weaken Goulart temporarily increased the authority of a prime minister and cabinet controlled by the more conservative chamber of deputies. Thereafter, the 1964 coup raised to new heights the sway of the president over congress.⁷³

Chile and Colombia boasted two of the strongest congresses, buttressed by organized and assertive political parties. According to most outside observers, the Chilean legislature was the most capable in Latin America. It exerted so much influence because of its long history, often bucking the chief executive. From the 1930s to the 1970s, the president always faced an opposition majority in at least one of the houses of congress. That was one reason lawmakers elevated the presidency further over congress on the eve of Allende's surprise electoral victory, but his subsequent stalemate with the legislature helped detonate the military coup of 1973. Then Pinochet abolished the congress until 1990, consulting instead with the usually cooperative junta as the legislative power.

From the 1930s to the 1970s, the Chilean congress had ample powers to initiate, alter, or shoot down legislation. Although only the president could propose the annual budget, which congress could only legally reduce, it found circuitous ways to pump up expenditures. It possessed the constitutional right to grill and impeach cabinet ministers but not to name them. It also exerted considerable control over the bureaucracy and patronage, partly through case work for constituents to make government offices accountable.

The senate wielded authority partly because its membership remained fairly stable. In the 1960s, only 25 percent of the Colombian congress was re-elected to a consecutive term, but 78 percent of the Chilean senate was returned. Chilean legislators also enjoyed far better staff support and committee structure than did their Colombian counterparts. Moreover, the Chilean members attended sessions and influenced policies much more regularly than did those in Colombia.⁷⁴

Nevertheless, the Colombian congress also outshone most of the others in Latin America. However, the legislature became less salient, as the executive branch increasingly concentrated on accelerating economic development

from the 1930s onward. Under the bi-partisan unity government of the National Front (1958-1974), the congress lost more leverage, when it did not launch any initiatives. That power-sharing agreement between the Liberals and Conservatives required a two-thirds majority in congress for any major legislation. Since two-thirds was very hard to obtain even under constitutional agreements, the legislature delegated more decree powers to the president.

In 1968, majority rule returned to the congress, but it remained unimposing. That body still suffered from slender financing and staffing compared to the ballooning executive branch. Moreover, high turnover resulted in 64 percent of the victorious deputy candidates in 1968 being newcomers. The assembly was overshadowed not only by the president and the clientelistic Liberal and Conservative parties but also by weighty interest groups, such as the Roman Catholic Church, the military, the industrialists, and the coffee growers.

Despite these problems, the Colombian congress still wielded some influence. Although seldom shaping national policies during the Front, it recruited new players into the political process, integrated regional groups into national dialogue, distributed patronage and spoils throughout the nation, aired conflicts, and legitimized national government institutions and practices. It sometimes obstructed the president, for example by delaying or modifying legislation. The congress also exerted oversight through hearings with government officials.

Colombian legislators also enjoyed leverage through their parties. Congressional representatives tended to be subservient to their parties, especially the one controlling the presidency. A congressman's future was determined more by party than by constituency. The national parties selected the candidates for all electoral contests and their place on the ballot. Since congressional seats went to the candidates listed highest on the ballot, parties maintained considerable discipline. For example, during 1961 to 1968, party cohesion in congressional votes normally ranged between 90 percent and 100 percent.⁷⁵

FRUSTRATED JUDICIAL REFORMS

The growth in mass democracies highlighted the ineffectiveness of Latin American court systems. Antiquated legal codes from the mid-nineteenth century still emphasized rationalistic individualism, private property, and a limited state. They did not allow for mushrooming political participation, concern with egalitarianism, social and labor rights, and roles for the state. When reformers tried to improve judicial independence, legal edu-

cation, accessibility, and defense of democratic rights, they encountered stiff resistance.

Some constitutions tried to augment the independence of the judiciary by taking appointments away from the president, giving judges lengthier terms, making dismissal from the bench more difficult, prohibiting the president from reducing judges' salaries, and forbidding judges from meddling in "politics." By the mid-1940s, only eight countries allowed presidents to select supreme court judges on their own. By 1957, the president, at least in law, could name supreme court judges without confirmation by congress only in Haiti, Chile, and Paraguay. The legislature alone picked supreme court judges in twelve countries, while both branches made the appointments in the rest. Many countries also delegated lower court appointments to the supreme court. Most countries still assigned supreme court judges temporary terms, in some cases as short or shorter than a presidency. In the 1950s, however, Mexico, Peru, Chile, Argentina, and Brazil appointed them for life.⁷⁶

These reforms helped some judiciaries exhibit greater independence, as indicated by the ejection of judges by many authoritarian regimes. Although upholding the rule of law remained problematic, it was sustained more frequently now, particularly in the larger and more modern countries. Despite improvements, both democratic and authoritarian presidents still worked their will over the judiciary in many ways. They usually resorted to removing uncooperative judges or defining broadly political matters outside their jurisdiction. Chief executives also violated institutional autonomy by formally abrogating judicial independence, bypassing ordinary courts through the establishment of separate ones, transferring and reassigning judges, slashing their salaries, and refusing to enforce their decisions. Judicial subservience to presidents also resulted from the social and political realities of private corruption, clandestine repression, and economic insecurity.⁷⁷

Most reformers also advocated a shift away from legal formalism, especially in law schools. Even with assistance from the United States, they enjoyed little success. These efforts formed part of the often futile attempts to make the courts more accessible to citizens of lower economic and social status.⁷⁸

The advocates of protected democracy preferred courts to continue emphasizing property rights, while the champions of popular democracy urged them to start focusing on social rights. The Mexican constitution of 1917 inspired the regional development of individual and group constitutional guarantees. Its promises of social justice found expression in nearly all other Latin American constitutions between the 1930s and 1960s. To protect these guarantees, reformers created new judicial remedies, especially